

Commercial Contracts & Specific Relief

Subject: Commercial Contracts & Civil | Edition: 2026 Comprehensive Study Module

Statutory Scope: Sec 56: Supervening Impossibility & Frustration (Satyabrata Ghose), Sec 74: Liquidated Damages & Proof of Loss (Kailash Nath 2015)

I. OVERVIEW & STATUTORY FOUNDATION

Doctrine of Frustration (Sec 56), Liquidated Damages vs Penalty (Sec 74), and Mandatory Injunctions under the 2018 SRA Amendment.

II. KEY SECTIONS & REGULATORY FRAMEWORK

- â€¢ Sec 56: Supervening Impossibility & Frustration (Satyabrata Ghose)
- â€¢ Sec 74: Liquidated Damages & Proof of Loss (Kailash Nath 2015)
- â€¢ Sec 20A (SRA): Special Safeguards for Infrastructure Injunctions (GE Power 2022)

III. CORE PRECEDENTS & ADJUDICATORY PRINCIPLES

- â€¢ Satyabrata Ghose (1954) - Substratum Frustration Rule
- â€¢ Simplex Concrete (2010 - Del HC) - Illegality of Damage Bar Clauses

IV. EXAMINATION CHECKLIST & ADVOCACY APPLICATION

- â€¢ Essential definitions, mandatory procedural steps, and jurisdictional thresholds.